

of the reasoning in *Lopez* applies equally to the instant matter currently before this Court.

The agreement is procedurally unconscionable because the agreement did not identify Ronald Laurence as being a party to the agreement and Article Four, which requires Ronald to arbitrate all claims in his individual capacity, was inserted into the arbitration agreement without headings or highlighting. (*Lopez, supra*, 39 Cal.App.5th at pp. 320-321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) For substantive unconscionability, the agreement lacks mutuality “because it requires residents to arbitrate those claims they are most likely to bring against the Facility (medical malpractice, personal injury, elder abuse) while allowing the Facility to pursue in court the actions the Facility is most likely to bring against residents (evictions and collections).” (*Lopez, supra*, 39 Cal.App.5th at p. 321; Kevin Eng. Decl., ¶ 2, Exh. B.) The agreement in this matter contains every flaw that the *Lopez* Court identified. (*Lopez, supra*, 39 Cal.App.5th at p. 321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) With a published and binding Court of Appeal decision precisely on point, this Court is required to rule in accordance with this binding authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455 [“Under the doctrine of stare decisis, all tribunals exercising inferior jurisdiction are required to follow decisions of courts exercising superior jurisdiction. Otherwise, the doctrine of stare decisis makes no sense. The decisions of this court are binding upon and must be followed by all the state courts of California. Decisions of every division of the District Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court.”].)

The Opposition offers argument on *Lopez* in multiple places and although Defendants’ reply brief spends seven pages on unconscionability it does not cite, address, or offer argument on *Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311. (MPA ISO Opposition, pp. 12:17-26, 15:10-12; Reply, pp. 9-15.)

Ruling

For the reasons discussed above, the Court **DENIES** Defendants’ Petition to Compel Arbitration.

14. 9:00 AM CASE NUMBER: C25-03772
CASE NAME: RECLAMATION DISTRICT NO. 800 VS. ALL PERSONS INTERESTED IN THE MATTER OF THE BENEFIT ASSESSMENT ADOPTED PURSUANT TO RESOLUTION NO. 25-13
HEARING IN RE: COMPLAINT FOR VALIDATION
FILED BY: RECLAMATION DISTRICT NO. 800
TENTATIVE RULING:

This is an action to validate a special benefit assessment by a public agency under Code of Civil Procedure §§ 860 to 870.5. The action and summons were properly published in accordance with § 861. No one has appeared to oppose validation, and default was entered.

Accordingly, **judgment will be granted** in favor of the plaintiff.

15. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION